

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA INC.

RESPONDENT.

JOINT STATUS REPORT

Pursuant to the September 15, 2022 Scheduling Order, Parties Bakerly, LLC (Complainant) and Seafrigo USA, Inc. (Respondent) (jointly, the “Parties”) requested and was granted an extension to submit a more comprehensive Joint Status Report by this date, November 10, 2022.

The Parties were and are currently continuing to review the first round of discovery responses exchanged by the parties on November 2, 2022, and contemplating additional discovery, if appropriate.

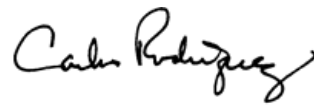
The parties’ counsel met and conferred this date, at which time the following was discussed:

- a) That Bakerly intended to submit a Motion for Partial Summary Decision pursuant to 46 CFR § 502.69(g) and § 502.70 with respect to demurrage issues within two weeks.
- b) Seafrigo would object to any Motion for Partial Summary Judgment until it has had the opportunity to obtain complete discovery related to the motion, including relevant

documentation, and has had the opportunity to take depositions of Bakerly representatives with knowledge of the subject matter.

- c) The parties seek a legal ruling as to whether, absent the Complainant or Respondent having caused the detention and demurrage charges at issue, the Respondent would be liable for charges assessed by steamship lines or terminals, which charges were simply passed through to the Complainant.
- d) That counsel for the parties, for purposes of simplifying issues, would meet and confer for purposes of identifying issues which might be appropriate for mediation pursuant to the Commission's procedures related to Alternative Dispute Resolution at 46 CFR § 502.401.
- e) That counsel for the parties, for purposes of simplifying issues, would also meet and confer for purposes of identifying facts which might be appropriate for stipulation of facts to which the parties might agree.

Respectfully Submitted:



Carlos Rodriguez
Julia B. Banegas
Husch Blackwell LLP
1801 Pennsylvania Ave., N.W. Suite 1000
Washington D.C. 20006
Phone no. 202-378-2365
E-mail:
carlos.rodriguez@huschblackwell.com
julia.banegas@huschblackwell.com

Attorney for Complainant, Bakerly LLC

/s/ Brendan Collins

BRENDAN COLLINS

GKG LAW, P.C.

1055 Thomas Jefferson Street, NW; Suite
620

Washington, D.C. 20007

(202) 342-6793

bcollins@gkglaw.com

Attorney for Respondent, Seafrigo USA Inc.